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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ **W.P.(CRL) 997/2021 & CRL.M.A. 7572/2021**

AVANTIKA RAY

..... Petitioner
Through Mr. Rohit M Sharma
(MAH/4415/08), Mr. Prashant R.
Dahat, Mr. Mohit M. Sharma,
Mr. Puneet Yadav, Mr. Sourabh
Gupta, Advocates along with the
Petitioner – in person.

versus

SUSMITA CHANDRA

..... Respondent
Through Mr. Prashant Kumar Mittal
(D/979/94), Advocate along with the
Respondent – in person.

CORAM:

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% **28.01.2022**

HEARD THROUGH VIDEO CONFERENCING

1. This petition under Article 226 of the Constitution of India has been filed for quashing CT Case No.1581/2020 titled as “Susmita Chandran vs. Avantika Ray” filed by the respondent herein under Section 12 of the Protection of Women From Domestic Violence Act.
2. This Court on 22.10.2021 had referred the matter to the Delhi High Court Mediation and Conciliation Centre. An amicable settlement has been arrived at between the parties. Relevant portion of the settlement agreement reads as under:

“1. The First Party, Second Party and Third Party

W.P.(CRL) 997/2021

have agreed to put quietus to the entire litigation among them.

2. The First Party and Third Party have agreed to dissolve their marriage by a decree of divorce by mutual consent under Section 13-B(1) and 13-B(2) of the Hindu Marriage Act.

3. The Third Party has agreed to return two locked bags intact and has agreed to pay to the First Party a sum of Rs.7,50,000/- (Rupees Seven Lakh and Fifty thousand) in full and final settlement of all her claims, be it with regard to stridhan, dowry articles, articles of personal use and maintenance/alimony(i.e. Past, Present and Future), in the manner provided hereinafter.

4. The Third Party has deposited a sum of Rs.2,10,000/- (Rupees Two lac ten thousand) in W.P.(C) No. 1288/21 in case Alankar Chandra Vs. Avantika Ray before Hon'ble Bombay High Court Bench at Nagpur. Third party shall have no objection if the said sum of Rs.2,10,000/- (Rupees Two lac ten thousand) is released to the First Party which is adjustable in the total settlement amount of Rs.7,50,000/- (Rupees Seven lac fifty thousand). The Third Party himself or through his counsel shall give no objection for the release of the said sum of Rs.2,10,000/- (Rupees Two lac ten thousand) in favour of the First Party.

5. First Party and Third Party shall file a joint petition under Section 13- B(1) of the Hindu Marriage Act on or before 15.01.2022 before the Family Court at Nagpur. The First Party and the Third Party shall cooperate with each other in filing of the said joint petition.

6. Third Party shall pay to the First Party at the time of filing of the said joint petition by way of Pay

Order/DD/RTGS/NEFT a sum of Rs. 1,80,000/- (Rupees One Lac Eighty Thousand) and so also has agreed to send two locked bags intact by prepaid Courier within five working days from the date of signing of this settlement agreement lying at the home of Third Party, to the First Party at her address mentioned hereinabove.

7. *First Party and the Third Party shall file a joint application for waiving of statutory period of six months within 15 days from the date of the filing of joint petition under Section 13-B(1) of the Hindu Marriage Act in terms of the judgment of Hon'ble Supreme Court in case of AMARJEET SINGH VS HARLEEN KAUR and file/cause second motion under Section 13-B(2) of the Hindu Marriage Act for dissolution of their marriage. First Party and Third Party shall jointly make a motion under Section 13-B (2) of the Hindu Marriage Act (Second Motion) before expiry of 30/07/2022 before the Family Court at Nagpur in case the waiving of statutory period of six months is not granted by the Family Court, Nagpur. Third Party shall pay a sum of Rs. 1,80,000/- to the First Party at the time of second motion. The Third Party shall pay by way of Pay Order/DD/RTGS/NEFT a sum of Rs. 1,80,000/- (Rupees One Lac Eighty Thousand to the First Party at the time of quashing of FIR / CR Case No. 234/2017 under Section 498 A R/w 34 IPC and 3 & 4 of DP Act at PS Sudda Gunte Palya by the Hon'ble Karnataka High Court, Bench at Bengaluru.*

8. *The First Party, Second Party and Third Party shall withdraw all the cases filed by them against each other in the following manner :*

i. *First Party shall withdraw the petition under Section 13 of the Hindu Marriage Act being Case No.A1235 / 2017 with liberty to revive the petition should the Third Party renege on the settlement agreement simultaneously with the filing of petition under Section 13-B(1) of the Hindu*

Marriage Act;

ii. Second Party shall withdraw her complaint under Section 12 of the PoWDV Act CT case 1581/2020 within ten working days of the filing of joint petition under Section 13-B(1) of the Hindu Marriage Act before the Id. Judge, Family Court at Nagpur. Second party will have the liberty to revive the proceedings should the First Party renege on the present settlement agreement;

iii. The Third Party shall withdraw the Petition before Hon'ble Bombay High Court Bench at Nagpur against the order awarding maintenance under Section 24 of the Hindu Marriage Act being W.P. (Civil) No.1288 of 2021 filed by the Third Party within ten working days from the filing of petition under Section 13B(1) of the Hindu Marriage Act;

iv. Second Party and Third Party and the father of the Third Party shall file petition under Section 482 Cr. P.C. for quashing of FIR / CR Case No. 234/2017 under Section 498 A R/w 34 IPC and 3 & 4 of DP Act at PS Sudda Gunte Palya, within 30 days after the petition Under Section 13B (1) Hindu Marriage Act is allowed by the Hon'ble Family Court at Nagpur, before Hon'ble Kamataka High Court Bench at Bengaluru. First Party agrees and undertakes to cooperate in filing of the above petition and also provide all documents that may be necessary to facilitate the quashing of the FIR, an affidavit of No Objection, photograph, identification paper, etc. after filing of joint petition under section 13 B(I) of Hindu Marriage Act. The First Party, if required, shall appear personally before Hon ble High Court and record her No Objection to the quashing of the

FIR against the Third Party and his parents i.e. Susmita Chandra and Raghubir Chandra. First party will have the liberty to revive the proceedings should the Second or the Third Party renege on the present settlement agreement.

9. *The parties agree that upon the present settlement being given complete effect, no party shall have any claim of any nature whatsoever against each other or their respective family members.*

10. *The parties agree that upon the present settlement being given complete effect, no party shall litigate against each other or their respective family members or any matter relating to or arising out of the marriage.*

11. *The parties agree and undertake not to bad mouth each other amongst relatives, friends and on social media.*

12. *The Parties to the Settlement Agreement agree and undertake to remain bound by the terms of the settlement and undertake not to resile in performing their respective obligations under the said Settlement agreement. The parties understand that the breach of the undertaking would make them liable for punishment under the Contempt of Courts Act.*

13. *In case First party commits breach of any of the terms of this settlement agreement or withdraws from or fails, for any reason whatsoever, to perform her obligation under this settlement agreement, the First party shall be liable for a penalty of Rs. 15,00,000/- (i.e. double of the settlement amount), in addition to return of the amount received by the first party from the Third party out of the settlement amount. In case the Second or the Third party commits breach of any of the terms of this settlement agreement or withdraws from or fails, for any*

reason whatsoever, to perform his obligation under this settlement agreement, the Third party shall be liable for a penalty of Rs. 15,00,000/- (i.e. double of the settlement amount), in addition to forfeiture of the amount paid by the Third party to First party out of the settlement amount. The First Party and the Third Party agree and understand that in the event of either party reneging from the settlement agreement it would constitute matrimonial offence of cruelty qua the other and the parties shall also be entitled to reopen all the litigations civil and criminal mentioned above .

14. The Hon'ble Delhi High Court may dispose of the Writ Petition (Crl.) No.997/2021 titled; Avantika Ray Vs. Susmita Chandra and pass such orders as the Hon'ble Court may deem fit and proper in view of the settlement reached between the parties.

15. The First Party, Second Party and Third Party have put their hands unto this Conciliated Settlement on the day, month and year first mentioned above.”

3. Today, the petitioner and respondent No.2 have joined the proceedings. They have been identified by their respective Counsels. It is stated by the respondent No.2/complainant that she has settled all her disputes with the petitioner out of her own free will, without pressure, coercion or undue influence.

4. The parties undertake that they will remain bound by the terms of the settlement arrived at between them and the proceedings recorded before this Court.

5. Since the dispute is purely private in nature and the instant case is squarely covered under the law laid down by the Supreme Court in Gian Singh vs. State of Punjab, (2012) 10 SCC 303, this Court is of the opinion

that no useful purpose will be served in continuing with the present proceedings. Resultantly, CT Case No.1581/2020 titled as “Susmita Chandran vs. Avantika Ray” filed by the respondent herein under Section 12 of the Protection of Women From Domestic Violence Act and all the proceedings emanating therefrom are hereby quashed. The parties shall remain bound by the terms of the settlement and the undertaking given to the Court.

6. The petition stands disposed of in the above terms along with the pending application(s), if any.

SUBRAMONIUM PRASAD, J

JANUARY 28, 2022

Rahul